



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

JAN 19 2000

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10758
(SECOND REVISION)

EXPIRATION DATE: December 31, 2001

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: PML Microbiologicals, Inc.
Spokane, WA
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of limited quantities of Sodium Borohydride, Division 4.3, in specially designed packagings to be exempt from placarding and labeling requirements as specified herein. This exemption provides no relief from the Hazardous Materials Regulation (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.504(a), § 172.400(b), § 172.101, § 173.4, § 173.155.
5. BASIS: This exemption is based on the application of PML Microbiologicals, Inc. dated December 22, 1997, submitted in accordance with § 107.109.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Sodium Borohydride	4.3	UN1426	I

7. SAFETY CONTROL MEASURES:

PACKAGING - Packaging prescribed is a sealed watertight aluminum pouch containing one 0.74 gram tablet of sodium borohydride. Each such pouch also contains one 2.4 gram buffer tablet of citric acid/sodium bicarbonate in a separate compartment.

Ten of these pouches are packed in a chipboard box inner container.

Ten of these inner containers are packed in a 200 pound burst strength fiberboard box. The completed package must meet the requirements of UN standard packaging at the packing group I performance level.

8. SPECIAL PROVISIONS:

- a. Each outer package must be marked "E-10758".
- b. Placarding and labelling requirements are waived for shipments authorized by motor vehicle, rail freight and cargo vessel.
- c. Packages which are offered for transportation by aircraft, must carry the "Dangerous When Wet" label.
- d. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

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f. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo aircraft only.
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each cargo vessel, aircraft or motor vehicle used to transport packages covered by this exemption. The shipper must furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by § 107.601 et seq., when applicable.

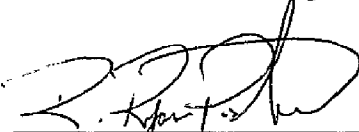
Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this

exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:


for Robert A. McGuire
Acting Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for
Hazardous Materials Safety, Research and Special Programs
Administration, Department of Transportation, Washington, D.C.
20590.

Attention: DHM-31.

The original of this exemption is on file at the above office.
Photo reproductions and legible reductions of this exemption
are permitted. Any alteration of this exemption is
prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S.
Department of Transportation, 400 7th Street, S.W.,
Washington, DC 20590-0001, Attention: Records Center, 202-366-
5046.

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PO: sdc